

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

MATTHEW J. LAMBERT,

Plaintiff,

- against -

THE CITY OF NEW YORK,
THE NEW YORK CITY POLICE DEPARTMENT,
OFFICER PURNELL LANCASTER, and
OFFICER JONATHAN HOM

Defendants.

Index No.

SUMMONS WITH COMPLAINT

Date Index No. Purchased:
September 21, 2012

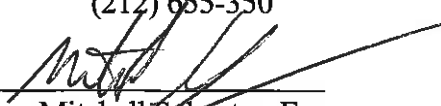
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is defendant, the City of New York's residence, which is: City of New York, Attn: Corporation Counsel, 100 Church St., 5th Fl., New York, NY 10007.

Dated: September 21, 2012
New York, NY

Meister Seelig & Fein, LLP
Attorneys for Plaintiff
2 Grand Central Tower
140 East 45th Street, 19th Floor
New York, NY 10017
(212) 655-350

By: 
Mitchell Schuster, Esq.
Stacey M. Ashby, Esq.

Defendants Addresses:

THE CITY OF NEW YORK
Attn: Corporation Counsel
100 Church St., 5th Fl.,
New York, NY 10007

THE NEW YORK CITY POLICE DEPARTMENT
Attn: Corporation Counsel
100 Church St., 5th Fl.,
New York, NY 10007

OFFICER PURNELL LANCASTER
New York City Police Department, Sixth Precinct
233 West 10th Street
New York, NY, 10014

OFFICER JONATHAN HOM, Shield 09652
New York City Police Department, Sixth Precinct
233 West 10th Street
New York, NY, 10014

SUPREME COURT OF THE STATE OF NEW YORK
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Index No.

VERIFIED COMPLAINT

Plaintiff, Matthew J. Lambert ("Plaintiff"), by and through his undersigned counsel, as and for his complaint against defendants, the City of New York ("City"), the New York City Police Department ("Police Department"), Officer Purnell Lancaster ("Lancaster"), and Officer Jonathan Hom ("Hom," and collectively with City, Police Department, and Lancaster shall be referred to as the "Defendants"), upon information and belief, hereby alleges as follows:

NATURE OF THIS ACTION

1. This is an assault, battery, false arrest, negligent hiring, and civil rights claim arising from an incident that occurred on or about the 24th day of June, 2011 at approximately 2:00 a.m. in or about the vicinity of 136 West Third Street, New York, New York, which caused Plaintiff to suffer serious personal injuries.

PARTIES

2. Plaintiff, Matthew J. Lambert, was and still is a resident of the State of New York and resides at 8366 116th Street, Richmond Hill, New York.

3. Defendant City was and still is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

4. Plaintiff caused a Notice of Claim and intention to sue to be served upon the Office of the Corporation of the City of New York and the notice was served within ninety (90) days of the date of the occurrence giving rise to this complaint.

5. More than thirty (30) days have elapsed since the presentation of the Notice of Claim, and that claim remains unadjusted and defendant City has wholly refused, failed and neglected to make any adjustments of the same.

6. An oral examination of Plaintiff was conducted by defendant City.

7. Defendant Police Department was and still is an agency of the City of New York.

8. Plaintiff caused a Notice of Claim and intention to sue to be served upon defendant Police Department and that notice was served within ninety (90) days of the date of the occurrence giving rise to this complaint.

9. More than thirty (30) days have elapsed since the presentation of the Notice of Claim, and that claim remains unadjusted and defendant Police Department has wholly refused, failed and neglected to make any adjustment of the same.

10. No oral examination of Plaintiff was requested by defendant Police Department.

11. Defendant Lancaster was employed by defendant City and defendant Police Department as a police officer and at all times hereinafter mentioned, was acting within the scope of his employment.

12. Defendant Hom was employed by defendant City and defendant Police Department as a police officer and at all times hereinafter mentioned, was acting within the scope of his employment.

13. This action is commenced within the time prescribed by the statute for the commencement of law suits.

FIRST CAUSE OF ACTION

14. On the 24th day of June, 2011 at approximately 2:00 a.m. while Plaintiff was a lawful patron of a food establishment located at 136 West Third Street, New York, New York, he was unlawfully and illegally assaulted, struck and/or beaten by defendants Lancaster and Hom, both officers of defendant Police Department, acting within the scope of their employment.

15. As a result of this attack, Plaintiff has been damaged and injured in his good name and reputation, caused to suffer great humiliation, pain and anguish of mind, and has been injured in his health, profession and business.

16. The aforesaid occurrence and resulting injuries to Plaintiff were due solely to the bad acts of defendants Lancaster and Hom, and the carelessness, recklessness and negligence of defendants City and Police Department.

17. Said occurrence and resulting injuries to Plaintiff were due without any fault or wrongdoing on the part of Plaintiff.

18. Plaintiff has been damaged in an amount beyond the jurisdictional limits of all lower courts.

SECOND CAUSE OF ACTION

19. Plaintiff repeats and realleges each allegation contained in paragraphs "1" through "18."

20. On the 24th day of June, 2011 at approximately 2:00 a.m., shortly after Plaintiff was unlawfully beaten as further detailed in paragraph "14," defendants Lancaster and Hom, both officers of defendant Police Department, acting within the scope of their employment, used unreasonable, unnecessary, unwarranted and excessive physical force to detain and falsely arrest Plaintiff, without a warrant or probable cause.

21. This arrest was illegal and without authority of the laws.

22. Plaintiff was detained by the police for many hours against his will and without probable cause.

23. This arrest deprived Plaintiff of his personal freedom and civil rights.

24. As a result of this arrest, Plaintiff has been damaged and injured in his good name and reputation, caused to suffer great humiliation, pain and anguish of mind.

25. The aforesaid occurrence and resulting injuries to Plaintiff were due solely to the improper conduct of Defendants.

26. Said occurrence and resulting injuries to Plaintiff were due without any fault or wrongdoing on the part of Plaintiff.

27. Plaintiff has been damaged in an amount beyond the jurisdictional limits of all lower courts.

THIRD CAUSE OF ACTION

28. Plaintiff repeats and realleges each allegation contained in paragraphs "1" through "27."

29. At all times hereinafter mentioned, defendant City maintained defendant Police Department as a unit and agency of the city government of the City of New York, having the duty to protect life and property, prevent crime, preserve the public peace and enforce all laws, ordinances and provisions in accordance with the Constitution.

30. At all times hereinafter mentioned, defendant City employed and had under its control, police officers, whose duty was to protect life and property, prevent crime, preserve the public peace and enforce all laws, ordinances and provisions in accordance with the Constitution.

31. Defendant City, by its agents, servants, employees, agencies and/or departments failed to adequately and properly test, screen, and train applicants for the position of police officers.

32. Defendant City, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly hired and trained applicants for the position of police officers.

33. Defendant City, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly supervised, controlled, managed, and maintained the activities of their police officers.

34. Defendant City, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers to act in an illegal manner.

35. Defendant City, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers to act in an unprofessional manner.

36. Defendant City, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers to act in a negligent and/or deliberately wrongful manner in carrying out their official duties and/or responsibilities.

37. Defendant City, by its agents, servants, employees, agencies and/or departments failed to take proper action in suspending and/or reprimanding their police officers.

38. Defendant City, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly continued to retain police officers as employees who were clearly unfit to be police officers.

39. Defendant City was negligent, careless and reckless in allowing their police officers to use excessive force.

40. At all times hereinafter mentioned, defendant Police Department, as a unit and agency of the city government of defendant City had the duty to protect life and property, prevent crime, preserve the public peace and enforce all laws, ordinances and provisions in accordance with the Constitution.

41. At all times hereinafter mentioned, defendant Police Department employed and had under its control, police officers whose duty was to protect life and property, prevent crime, preserve the public peace and enforce all laws, ordinances and provisions in accordance with the Constitution.

42. Defendant Police Department, by its agents, servants, employees, agencies and/or departments failed to adequately and properly test, screen and train applicants for the position of police officers.

43. Defendant Police Department, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly hired and trained applicants for the position of police officers.

44. Defendant Police Department, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly supervised, controlled, managed, and maintained the activities of their police officers.

45. Defendant Police Department, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers to act in an illegal manner.

46. Defendant Police Department, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers to act in an unprofessional manner.

47. Defendant Police Department, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers to act in a negligent and/or deliberately wrongful manner in carrying out their official duties and/or responsibilities.

48. Defendant Police Department, by its agents, servants, employees, agencies and/or departments failed to take proper action in suspending and/or reprimanding their police officers.

49. Defendant Police Department, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly continued to retain police officers as employees who were clearly unfit to be police officers.

50. Defendant Police Department was negligent, careless and reckless in allowing their police officers to use excessive force.

51. As a result of defendants City and Police Department's negligent hiring, Plaintiff has been damaged and injured in his good name and reputation, caused to suffer great humiliation, pain and anguish of mind, and has been injured in his health, profession and business.

52. The aforesaid occurrence and resulting injuries to Plaintiff were due to the carelessness, recklessness and negligence of defendants City and Police Department.

53. Said occurrence and resulting injuries to Plaintiff were due without any fault or wrongdoing on the part of Plaintiff.

54. Plaintiff has been damaged in an amount beyond the jurisdictional limits of all lower courts.

FOURTH CAUSE OF ACTION

55. Plaintiff repeats and realleges each allegation contained in paragraphs "1" through "54."

56. The aforesaid acts of the Defendants, their agents, servants, employees, agencies and/or departments violated Plaintiff's civil rights under Title 42 of the United States Code, section 1983.

57. By reason thereof, Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts.

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

FIRST CAUSE OF ACTION: An amount beyond the jurisdictional limits of all lower courts

SECOND CAUSE OF ACTION: An amount beyond the jurisdictional limits of all lower courts

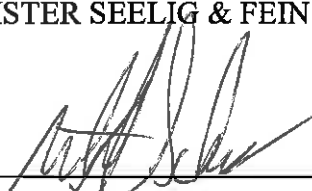
THIRD CAUSE OF ACTION: An amount beyond the jurisdictional limits of all lower courts

FOURTH CAUSE OF ACTION: An amount beyond the jurisdictional limits of all lower courts

with interest from the 24th day of June, 2011, together with the costs and disbursements of this action.

Dated: New York, New York
September 21, 2012

MEISTER SEELIG & FEIN LLP

By: 

Mitchell Schuster, Esq.
Stacey M. Ashby, Esq.
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140 East 45th Street – 19th Floor
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